

Amendment No. 1 to SB1675

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1675*

House Bill No. 1670

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 67-5-501(11), is amended by deleting the following language:

"Residential property" includes all real property that is used, or held for use, for dwelling purposes and that contains not more than one (1) rental unit.

and substituting instead:

"Residential property" includes all real property that is used, or held for use, for dwelling purposes that can be sold and purchased as a single unit in fee simple title, and that contains not more than one (1) rental unit.

SECTION 2. Tennessee Code Annotated, Section 67-5-801(b), is amended by adding the following as a new, appropriately designated subdivision:

(4)

(A) Notwithstanding subdivisions (b)(2)-(3), a parcel of real property containing one (1) single family rental home or townhouse, as defined by § 68-120-101(a)(8)(C)(ii), used, or held for use, for dwelling purposes must be classified as residential property, as defined by § 67-5-501, regardless of whether the real property is the principal residence of the owner.

(B) This subdivision (b)(4) does not supersede or invalidate a private agreement, covenant, or restriction concerning the use or status of real property.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.